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General Comment

What this proposal is basically amounting to is allowing AI companies like Google and OpenAI (owned by Microsoft) to violate fair use and copyright law without repercussion. It is essentially allowing these companies to become legal monopolies and utterly stifle innovation and creativity in not just the field of AI but in all creative and technological industries.

The AI models operated by these companies must rely on a constant supply of new training data, because they cannot create anything new without decaying. Without any sort of compensation, artists, creatives and even those in the entertainment industry will have less incentive to create anything new. And it is not just artists at work. Any sort of technical writing, teaching, legal document creation and virtually any profession not directly involving physical labor would be put at risk.

Not to mention, if anything we create is automatically used for training data without compensation, the American people is essentially working for these companies for free. That does not sound like a democratic, capitalist society. This wouldn't be so bad if these companies were going out of their way to faithfully provide a usable service. However, this is not the case.

As non-government entities, these companies have no financial incentive in providing actually quality product back to Americans. For example, Google AI's model actively suppresses search results, prioritizing paid advertisements over accurate information. On top of that, Google's AI is designed to give you the answer it thinks you need without you having to visit other websites, decreasing overall search traffic elsewhere. With the Google search engine already controlling a large portion of the Internet, the ability to find reliable information is compromised.

Furthermore, Google in the past has been shown to be politically biased. For example, there was an incident when their model was asked to generate images of German soldiers from World War II. It produced images of individuals with skin colors that were not accurate to the time period, which implies they support aggressive revisionist history and that they are willing to go out of their way to deny access to accurate historical documents.

This will undoubtedly compromise free speech and freedom of expression over the Internet as there would be nothing stopping Google from suppressing the discoverability of any website that does not politically align with their beliefs. Google and Microsoft both openly embrace DEI, going against President Trump's mandate to cease discriminatory hiring practices. Giving these companies even more power would effectively allow them to continue to undermine not just the wishes of the American people but also that of the government.

And it doesn't end there. In Microsoft's case, their Recall AI actively takes screenshots of a user's computer and makes no attempt at hiding sensitive information such as passwords and social security numbers. In the event of a data breach, it will only facilitate criminal acts such as identity theft. Not to mention, the blatant violations of privacy. Certainly, you would not want something like this running on a government computer with classified information. Twenty years ago, we would have called with malware.

If the United States wants to properly take its place as a leader in the AI industry, it needs to do so ethically. Google and Microsoft are not above the law, and it will be a mistake to allow them to violate copyright law without consequence. It is not worth the price of freedom nor the stability of a free market economy.